

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Vittore	Team: Squad #15	CCRB Case #: 202200277	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/13/2022 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/13/2023	Precinct: 30		
Date/Time CV Reported Thu, 01/13/2022 4:45 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 01/13/2022 4:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Miguele Amoresano	00076	924884	030 PCT
2. LT Ahmad Othman	00000	937230	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Woloski	04651	952355	INT FIO PRG
2. PO Jeremy Stumer	19712	969379	030 PCT
3. DI Jonathan Korabel	00000	930498	030 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Miguele Amoresano	Abuse: Sergeant Miguele Amoresano entered § 87(2)(b)	A . Within NYPD Guidelines
B . LT Ahmad Othman	Abuse: Lieutenant Ahmad Othman entered § 87(2)(b)	B . Within NYPD Guidelines
C . SGT Miguele Amoresano	Abuse: Sergeant Miguele Amoresano searched § 87(2)(b)	C . Substantiated
D . SGT Miguele Amoresano	Abuse: Sergeant Miguele Amoresano threatened to arrest § 87(2)(b)	D . Substantiated
E . LT Ahmad Othman	Abuse: Lieutenant Ahmad Othman threatened to arrest § 87(2)(b)	E . Substantiated
F . LT Ahmad Othman	Abuse: Lieutenant Ahmad Othman threatened to arrest § 87(2)(b)	F . Substantiated

Case Summary

On January 13, 2022, § 87(2)(b) filed this complaint in-person at the CCRB.

On January 13, 2022, at approximately 11:00 a.m., Sergeant Miguele Amoresano and Lieutenant Ahmad Othman of the 30th Precinct entered § 87(2)(b) in Manhattan (**Allegations A and B: Abuse of Authority – Entry of Premises, Within NYPD Guidelines**) and a search was conducted of the unit (**Allegation C: Abuse of Authority – Search of Premises, substantiated**). Sergeant Amoresano threatened to arrest § 87(2)(b) (**Allegation D: Abuse of Authority – Threat of Arrest, substantiated**). Lieutenant Othman threatened to arrest § 87(2)(b) and § 87(2)(b) (**Allegations E and F: Abuse of Authority – Threat of Arrest, substantiated**). No arrests were made, or summonses issued as a result of the incident.

The investigation obtained body worn camera video of the incident captured by Sergeant Amoresano (Board Review 01 and 02) and Lieutenant Othman (Board Review 03 and 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Miguele Amoresano entered § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Ahmad Othman entered § 87(2)(b)

On January 20, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 05 and 06). On January 21, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 07 and 08). On January 24, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 09 and 10). On February 4, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 11 and 12). On February 15, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 13 and 14). On June 1, 2022, Sergeant Amoresano was interviewed by the CCRB (Board Review 15 and 16). On September 15, 2022, Lieutenant Othman was interviewed by the CCRB (Board Review 17 and 18). On July 13, 2022, Sergeant Woloski was interviewed by the CCRB (Board Review 19 and 20). On August 12, 2022, Police Officer Stumer was interviewed by the CCRB (Board Review 21 and 22). On January 9, 2023, Deputy Inspector Jonathan Korabel was interviewed by the CCRB (Board Review 23 and 24).

It is undisputed that Sergeant Amoresano and Lieutenant Othman entered § 87(2)(b). The civilians interviewed that were present at the time of the incident stated that § 87(2)(b) consented to the entry. § 87(2)(b) was not present and therefore was unable to provide a firsthand account of the entry. Sergeant Amoresano and Sergeant Woloski consistently stated that § 87(2)(b) granted officers consent to enter. However, Lieutenant Othman and Police Officer Stumer provided conflicting accounts of the entry, stating that officers entered without receiving consent from residents due to the fact that the building staff had the authority to enter the apartment at will and extended that authority to officers at the time of entry.

§ 87(2)(b) stated that § 87(2)(b) is an apartment building that is part of a housing program administered by § 87(2)(b). The leaseholder, § 87(2)(b) sublet § 87(2)(b) to § 87(2)(b) for one year. § 87(2)(b) was not residing in the apartment at the time of the incident. At the time of the incident, § 87(2)(b) resided in the apartment with § 87(2)(b) and § 87(2)(b). § 87(2)(b) kept his music recording equipment in the bedroom. § 87(2)(b) and § 87(2)(b) personal belongings were kept in the living room. § 87(2)(b) was not present at

§ 87(2)(b) when officers were on scene, and was informed about what transpired there by § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) stated that he rented the bedroom of § 87(2)(b) from § 87(2)(b) for approximately a year and a half prior to the incident. On the date of the incident, § 87(2)(b) informed § 87(2)(b) that there were police officers at the door of § 87(2)(b). § 87(2)(b) asked who was at the door and what the problem was. Sergeant Amoresano replied, "Can you open the door, § 87(2)(b) is § 87(2)(b) nickname. § 87(2)(b) opened the door but left the chain lock on. He asked Sergeant Amoresano if they had a search warrant. Sergeant Amoresano responded that building management had the right to search the apartment every week and do not require a search warrant to do so per program guidelines. § 87(2)(b) opened the door to let the officers and building staff in. Officers and building staff subsequently entered the apartment.

§ 87(2)(b) stated that she was in the bathroom when officers entered the apartment with building management. She further stated that § 87(2)(b) let officers into the apartment.

§ 87(2)(b) Vice President of § 87(2)(b) stated that § 87(2)(b) is an apartment building owned by § 87(2)(b). Some of the units in the building are affordable units, one of which is § 87(2)(b). § 87(2)(b) contracts with a property management company to provide supportive services for the tenants of these units. The management company is required to conduct regular inspections of the units pursuant to § 87(2)(b) program rules and regulations. On the date of the incident, building staff planned to conduct the aforementioned inspection of § 87(2)(b). Staff did not feel comfortable going into the apartment due to a report of a firearm in the unit made by the former tenant, § 87(2)(b). § 87(2)(b) called the 30th Precinct and spoke to Sergeant Amoresano. She requested a police escort for the inspection due the safety concerns around the firearm allegation. Sergeant Amoresano and several other officers came to the building later that day. § 87(2)(b) building staff and the officers went to § 87(2)(b). § 87(2)(b) the property manager for the building, knocked on the door and asked the individuals inside to open the door. One of the individuals in the apartment responded but did not open the door. One of the officers asked the individual to open the door because building staff needed to inspect the apartment. Eventually one of the individuals inside opened the door and agreed to let building staff and officers inside. § 87(2)(b) did not recall who the individual was that let them into the apartment.

Sergeant Amoresano stated that he received a call from § 87(2)(b) on the date of the incident. She informed him that she suspected the current occupants of § 87(2)(b) of selling drugs out of the apartment due to the large amount of foot traffic in and out of the unit by individuals who did not reside there. She further stated that one of the occupants threatened someone from building management by saying that they had a firearm. § 87(2)(b) told Sergeant Amoresano that building management needed to conduct an inspection of the apartment per their program guidelines and requested a police escort to accompany them while they conducted the inspection because she was concerned about the safety of building staff due to allegations of a firearm in the unit and the ongoing sale of narcotics inside the apartment. § 87(2)(b) did not see the firearm herself and did not provide a description of the firearm to Sergeant Amoresano. She also did not inform Sergeant Amoresano of who specifically was threatened or by whom. § 87(2)(b) informed Sergeant Amoresano that the current occupants have resided at the apartment for more than 30 days. § 87(2)(b) did not inform Sergeant Amoresano of whether she herself suspected the current occupants of being involved in violent crime. Sergeant Amoresano and § 87(2)(b) set a time for officers to escort building staff during their inspection for later that day. Sergeant Amoresano had no prior interaction with building management, or any of the occupants of

§ 87(2)(b) and was not familiar with any of the individuals involved prior to receiving the phone call from § 87(2)(b) Sergeant Amoresano, Lieutenant Othman, Sergeant Woloski, and a police officer, whose name Sergeant Amoresano was unable to recall, went to § 87(2)(b). Upon arriving, Sergeant Amoresano spoke with § 87(2)(b) who informed him that § 87(2)(b) nickname is § 87(2)(b). Sergeant Amoresano was not familiar with § 87(2)(b) or any of the other civilians involved, prior to the incident. Sergeant Amoresano then went to § 87(2)(b) with building management and knocked on the door of the apartment. § 87(2)(b) opened the door. Sergeant Amoresano asked § 87(2)(b) if he consented to officers and building staff entering the apartment so building staff could perform an inspection of the apartment, which they retain the right to do per program policy. § 87(2)(b) verbally consented to the entry of officers and building staff. Sergeant Amoresano entered the apartment. Sergeant Amoresano was not under the impression that there was a violent crime in progress prior to entering the apartment. Sergeant Amoresano did not know at the time of entry if § 87(2)(b) had any active warrants or I-Cards. Sergeant Amoresano did not recall whether Lieutenant Othman gave him any instructions prior to entering the apartment.

Lieutenant Othman stated that upon arriving at § 87(2)(b) on the date of the incident, Sergeant Amoresano spoke with the building supervisor. The supervisor told Sergeant Amoresano that the former lessee of the apartment informed building staff that § 87(2)(b) and § 87(2)(b) moved into his apartment and that he suspected them of dealing drugs. The supervisor did not explain why the original occupant suspected that § 87(2)(b) and § 87(2)(b) were dealing drugs. Lieutenant Othman did not know the name of the former tenant and did not contact the former tenant to corroborate the allegations made by the building supervisor prior to entering the apartment. Lieutenant Othman was not aware of any specific threats made by the occupants against building staff or any other civilians at this time. Lieutenant Othman did not know how long § 87(2)(b) and § 87(2)(b) had lived in the apartment, or whether they had been there for more than 30 days. After the conversation with the building supervisor, Lieutenant Othman and the other officers went with building staff to the apartment. Sergeant Amoresano knocked on the front door. § 87(2)(b) called out through the door to ask who was there. Sergeant Amoresano identified himself as a police officer and asked him to open the door. When § 87(2)(b) opened the door Lieutenant Othman, Sergeant Amoresano, Sergeant Woloski and building staff entered the apartment. Neither Lieutenant Othman, Sergeant Amoresano requested permission to enter the apartment. Lieutenant Othman explained that officers were not required to obtain consent prior to entering due to the fact that building staff retained the authority to enter the apartment at will per program policy.

Sergeant Woloski stated that Sergeant Amoresano took the lead and knocked on the door of § 87(2)(b). § 87(2)(b) opened the door. Sergeant Amoresano explained to him why officers were there and that he did not have a legal right to reside in the apartment. Sergeant Woloski did not speak to § 87(2)(b) about why officers were there or address him in any capacity at this time. § 87(2)(b) then invited officers into the apartment. Sergeant Woloski, Sergeant Amoresano, and Lieutenant Othman subsequently entered the apartment.

Police Officer Stumer stated that he did not recall whether the employees of the building or police officers knocked on the apartment door. Two individuals came to the door and officers explained to them why they were there. Officers and building management subsequently entered the apartment. Police Officer Stumer did not recall the content of this conversation or whether officers asked for consent to enter the apartment. He further stated that building management retained the authority to grant officers consent to enter the apartment per program policy. Police Officer Stumer was not aware of anyone being in imminent danger in the apartment prior to the entry.

At 1:11, Sergeant Amoresano's body worn camera video (Board Review 01 and 02) shows him knocking on the door of § 87(2)(b) and identifying himself as a police officer. At 4:02, Sergeant Amoresano asks § 87(2)(b) to see the room where his DJ equipment is kept. § 87(2)(b) turns and walks inside the apartment and Sergeant Amoresano follows him inside to the bedroom. At no point prior to entering the apartment does Sergeant Amoresano give § 87(2)(b) the option to refuse officers consent to enter. At the 4:00 timestamp, Lieutenant Othman's body worn camera video (Board Review 03 and 04) shows him entering the apartment at this time as well.

According to § 87(2)(b) lease agreement for § 87(2)(b) (Board Review 25), § 87(2)(b) and/or representatives of § 87(2)(b) retain the right to inspect the unit.

According to People v. Wells, 143 A.D.2d 708 (Board Review 26), landlords possess sufficient authority and control over their property to effectively consent to entry by police in the absence of consent from tenants.

New York State Real Property Actions and Proceedings Law § 711 (Board Review 27), defines a tenant as an occupant of a dwelling for thirty consecutive days or longer.

Building management staff retained the right to inspect the unit per the lease agreement signed by the former tenant, and were entitled to request a police escort in carrying out this function. § 87(2)(g)

Therefore, it is recommended that **Allegations A and B** are closed as **within NYPD guidelines**.

Allegation (C) Abuse of Authority: Sergeant Miguele Amoresano searched § 87(2)(b)

§ 87(2)(b) stated that § 87(2)(b) is a one-bedroom apartment with a combined living room/kitchen area. There are two closets, one in the living room and one in the bedroom. § 87(2)(b) kept his music recording equipment in the bedroom. § 87(2)(b) and § 87(2)(b) personal belongings were kept in the living room.

§ 87(2)(b) did not report that Sergeant Amoresano asked for consent to search the apartment. § 87(2)(b) also did not report being informed by Sergeant Amoresano that he could deny officers consent to search.

§ 87(2)(b) stated that she asked Sergeant Amoresano if officers had a search warrant. Sergeant Amoresano told her that they did not need a search warrant because § 87(2)(b) was not supposed to be residing in the apartment.

§ 87(2)(b) stated that while she and the other building staff were conducting the inspection, officers were standing around in the apartment. She did not observe any of the officers open closet doors, look under things, or move anything inside the apartment.

Sergeant Amoresano stated that he opened some doors inside the apartment but did not recall which ones. He further stated that he might have picked up or moved items or looked under things but did not recall any specific actions he took. Sergeant Amoresano did not recall whether Lieutenant Othman

gave him any instructions after entering the apartment. Sergeant Amoresano did not ask § 87(2)(b) to sign a consent to search form.

Lieutenant Othman denied that he or the other officers on scene searched the apartment.

Sergeant Woloski stated that he and the other officers looked around the apartment to see if there was a firearm in plain view. Neither Sergeant Woloski nor any of the other officers took additional actions to investigate whether there was a firearm in the apartment. Sergeant Woloski and the other officers also checked inside closets and under furniture in order to determine whether there was anyone else hiding in the apartment. Sergeant Woloski could not recall if he moved any furniture or opened any doors during this time.

Police Officer Stumer stated that he did not pick up or move objects in the apartment or look under furniture at any point while inside the apartment. He did not recall what the other officers were doing or whether they picked up and/or moved any of the items in the apartment or looked under furniture.

At 8:50, Sergeant Amoresano's body worn camera video (Board Review 01 and 02) shows a conversation between himself and § 87(2)(b) during which he asks § 87(2)(b) for consent to search the apartment. § 87(2)(b) grants consent by stating, "Look. There is nothing in here illegal."

At 09:28, Sergeant Amoresano has a conversation with § 87(2)(b) during which he asks her to wait in the hallway outside the apartment while the inspection is underway. He does not ask her for consent to search prior to her exiting the apartment at 12:03. He proceeded to search the apartment at various points throughout the remainder of the incident. At 14:54, Sergeant Amoresano removes a blue bag from inside the bedroom closet. At 15:20, Sergeant Amoresano picks up a clear container with a white substance in it inside the bedroom. He then enters the living room/kitchen area and feels the outside of several jackets hanging on the bathroom door at 15:45, after which he enters the bathroom and looks behind the shower curtain. At 20:03, Sergeant Amoresano picks up a small black safe in the kitchen area of the apartment and shakes it.

According to Georgia v. Randolph, 547 U.S. 103 (Board Review 28), when two parties with control of a residence are both present, officers cannot conduct a search of the residence if one consents and one objects.

According to New York City Administrative Code 14-173 (Board Review 29), officers are required to obtain voluntary, knowing and intelligent consent prior to conducting a search of a person's home, when such search is not conducted pursuant to a warrant, or any other exception to the warrant requirement under applicable law. Further, when obtaining such consent, officers are required to:

- Articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explain that such search will not be conducted if such person refuses to provide consent to such search; and refrain from conducting such search where such consent has not been obtained.

Further, an officer who seeks consent to conduct a search is required to:

- Create a video record of the information communicated pursuant to such guidance and such person's response to such information when such officer is equipped with a body-worn camera issued by the department.
- In the event body worn cameras are not provided by the department to officers, an officer is required to obtain objective proof of voluntary, knowing, and intelligent consent to search by documenting the information communicated by an officer pursuant to the guidance around consent searches and the response of the person who is the subject of such search in writing and by offering such person to sign a statement confirming such consent, or by documenting such information through audio, through video and audio, or by other methods, excluding fingerprinting.

§ 87(2)(g)

it is recommended that **Allegation C** is closed as **substantiated**.

Allegation (D) Abuse of Authority: Sergeant Miguele Amoresano threatened to arrest § 87(2)(b)

Sergeant Amoresano stated that he told § 87(2)(b) that he would have to place her under arrest when she refused his order to wait in the hallway outside the apartment while building staff conducted their inspection. He further stated that § 87(2)(b) refusal to leave was considered disorderly behavior, as well as obstruction of governmental administration, due to the fact that it would have prevented building staff from conducting their inspection.

§ 87(2)(b) did not allege that Sergeant Amoresano threatened to arrest her at any point during the incident.

At 9:27, Sergeant Amoresano's body worn camera video (Board Review 01 and 02) captures a conversation between himself and § 87(2)(b). Sergeant Amoresano tells § 87(2)(b) to step outside until after building management has completed their inspection. § 87(2)(b) refuses to leave, at which point, Sergeant Amoresano informs her that if she does not leave the apartment, he would have to place her under arrest. At 12:00, § 87(2)(b) complies with Sergeant Amoresano's order for her to wait in the hallway.

According to NYS Penal Law § 240.20 (Board Review 30), an individual is guilty of disorderly conduct when they act in the following ways with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

- engages in fighting or in violent, tumultuous or threatening behavior;
- makes unreasonable noise;
- in a public place, uses abusive or obscene language, or makes an obscene gesture;
- without lawful authority, disturbs any lawful assembly or meeting of persons;

- obstructs vehicular or pedestrian traffic;
- congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse;
- creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

According to NYS Penal Law NYS Penal Law § 195.05 (Board Review 31), a person is guilty of obstructing governmental administration when they intentionally obstruct, impair or pervert the administration of law or other governmental function or prevent or attempt to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act.

The conversation between § 87(2)(b) and Sergeant Amoresano occurred inside § 87(2)(b) § 87(2)(g) as evidenced by the video footage of the conversation captured on Sergeant Amoresano's body worn camera video, at no point during the conversation does § 87(2)(b) engage in any of the disorderly behaviors delineated in NYS Penal Law § 240.20. § 87(2)(g) Therefore, it is recommended that **Allegation D** is closed as **Substantiated**.

Allegation (E) Abuse of Authority: Lieutenant Ahmad Othman threatened to arrest § 87(2)(b)

Allegation (F) Abuse of Authority: Lieutenant Ahmad Othman threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that a male officer presented § 87(2)(b) with paperwork. He told her if she signed the paperwork she could leave without a problem, but if she refused to leave, she would be arrested.

§ 87(2)(b) stated that she was not told at any point by officers that she was being evicted and would not be permitted to come back to the apartment.

§ 87(2)(b) Director of Residential Services, stated that he was not aware of any type of eviction notice having been obtained for § 87(2)(b) and § 87(2)(b) prior to the incident.

Sergeant Amoresano stated that § 87(2)(b) informed him during a phone conversation prior to the incident, that the lessee of § 87(2)(b) relinquished the apartment. At the time that he relinquished the unit there were individuals residing there who were not on the lease agreement. § 87(2)(b) did not provide a specific date that the prior lease holder vacated the apartment. § 87(2)(b) did not mention how long she believed the current occupants had been residing in the apartment. Sergeant Amoresano explained to § 87(2)(b) over the phone prior to the incident that if the current occupants have been residing in the apartment for over 30 days, she would have to go through Housing Court in order to remove them from the apartment. He further explained that NYPD officers do not have the authority to evict the occupants and that she would

have to obtain an eviction notice from Housing Court in order to do so. § 87(2)(b) informed Sergeant Amoresano that the current occupants have resided at the apartment for more than 30 days. When Sergeant Amoresano arrived at § 87(2)(b) prior to going up to the apartment, § 87(2)(b) expressed to Sgt. Amoresano that building management wanted the occupants to vacate the apartment. Sergeant Amoresano explained to her that officers could not force the occupants to leave. No one from building management showed Sergeant Amoresano an eviction notice or mentioned having obtained one. Sergeant Amoresano denied telling § 87(2)(b) that she needed to vacate the apartment.

Lieutenant Othman stated that Sergeant Amoresano informed him of a call he received from a § 87(2)(b) employee in regard to § 87(2)(b). The employee told Sergeant Amoresano that there were two individuals illegally occupying the apartment and requested officer's assistance in removing these individuals from the premises. Lieutenant Othman was not informed of how long § 87(2)(b) and § 87(2)(b) resided in the apartment prior to the incident. When Lieutenant Othman was asked during his CCRB interview why he decided to assist the staff in helping to facilitate the removal of the occupants, rather than referring them housing court, Lieutenant Othman stated that the terms of residence for the housing program allowed building management to unilaterally remove § 87(2)(b) and § 87(2)(b). While staff was conducting their inspection, Lieutenant Othman stepped out into the hallway with § 87(2)(b) and informed her that he could have arrested her and § 87(2)(b) because of the drug paraphernalia found inside the apartment, but that his primary interest was getting them out of the apartment. He told her he would not take enforcement action against them for the drug paraphernalia if she and § 87(2)(b) agreed to vacate the apartment. Building management also told § 87(2)(b) and § 87(2)(b) that they had to leave and asked them to sign paperwork agreeing to vacate the apartment. Lieutenant Othman did not see or review these documents himself and did not know whether § 87(2)(b) or § 87(2)(b) ultimately signed the documents.

Sergeant Woloski stated that building staff communicated to officers that they wanted § 87(2)(b) and § 87(2)(b) to sign a document stating that they do not have squatter's rights and agree to permanently vacate the apartment. Sergeant Woloski did not see the aforementioned document. He was not shown an eviction notice for the current occupants and building staff did not mention having obtained one. § 87(2)(b) agreed to sign the document. Sergeant Woloski did not have an independent recollection of Lieutenant Othman, Sergeant Amoresano, or any other officer on scene telling occupants that they would be arrested if they refused to vacate the apartment. He also did not recall any officer on scene asking § 87(2)(b) to sign the document, present the document to sign, or facilitate her signing the document in any way.

Police Officer Stumer did not recall if building staff mentioned how long the occupants were residing in the apartment. Building staff did not show Police Officer Stumer an eviction notice or mention having obtained one.

At 23:42, Lieutenant Othman's body worn camera video (Board Review 03 and 04) shows him asking one of the building management employees how long "they" have been residing at the apartment. A female employee responds, "Tentative records say they've been here since 2010."

At 31:40, Lieutenant Othman's body worn camera video shows him speaking to § 87(2)(b) and § 87(2)(b). Lieutenant Othman tells them that they could be arrested for drugs and drug paraphernalia found in the apartment during the inspection; however, if they agree to vacate the apartment, they will not be arrested for the items found.

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 35).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 36).
- Lieutenant Othman has been a member of service for 18 years and has been a subject in eight CCRB complaints and 16 allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Amoresano has been a member of service for 22 years and has been a subject in nine CCRB complaints and 24 allegations, of which four were substantiated.:
 - 200511864 involved substantiated allegations of abuse of authority against Sergeant Amoresano. The Board did not make a disciplinary recommendation and the NYPD did not impose discipline.
 - 202105030 involved substantiated allegations of abuse of authority against Sergeant Amoresano. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 10, 2023, the New York City Office of the Comptroller had no record of any notices of claim filed in regard to the incident (Board Review 37).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____